

• ROL - विधिधर्म

- Global Context - वैश्विकपरिदृष्टि
- Continuity of constitution

- शास्त्र सिद्धांतों द्वारा कर्म-कारि जातक।
- Benar आन्दोलन को समझना - अधिकारों का अर्थ
- व्यक्त-सम्पत्ति = joint property
- स्वातंत्र्य " = property in common

• Case Pulling & Transfer :-

- For maintaining integrity.
- Justice must & not only be done
- should appear to be done
- न्याय जैसे माना है, न्याय जैसे करने
- न्याय देखिए।

Court Cases Challenge

1. Registration of Case / Investigation
2. Evidence Collection
3. Filing of suit
4. Hearing
5. Final Judgement
6. Execution

Free Process
to the
down
Challenges.

Romeo - Juliet

Imp. Let us proceed the answer of the given question in a different way with an example. ... Begin like this:

- Bench Shopping - by parties
- Bench shal Selling - by prosecutor
- Forum Selling - in patent & torts by plaintiff
- Venue Manipulation - temporary relocation
- Back firing
- Counterproductive
- Good faith
- Full faith & credit
- Jury vs Bench trial
→ fact finding
- Statute of limitation.
- Burden of proof varies by jurisdiction

Appeal rights - differ across jurisdiction

- Doctrine of Minor Procedural lapses.

- Copy-Paste Heritage - Sentencing Act

- Lesser Harm - Harsher punishment.

Core Unifying Principle for Diverse Positivist Thinkers.

- The Separability Thesis
 - A law's existence doesn't depend on its moral quality
 - Law is law regardless of whether it's just or unjust

2. Social Fact Thesis

- Law's validity comes from social sources (social practices, conventions, etc.)
- Law is human artifact, not derived from nature / God

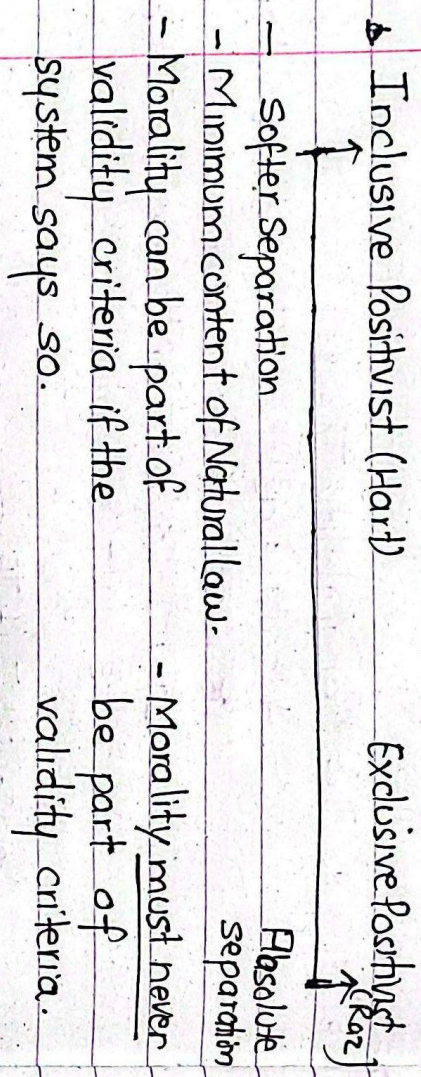
3. Pedigree Test:

- legal validity is determined by formal criteria.
- Was it enacted properly?

- Legal Battle - Court
- Legal Debate - Writing

(904)

Spectrum of Positivist View



- Hart was Raz's doctoral supervisor at Oxford.
- Raz was 2nd generation of legal positivist
- Raz refined & strengthened Hart's separability Thesis.

- Raz was building upon Hart's work, not attacking on it. Raz was refining positivism rather than opposing Hart.

Dworkin-Hart-Dworkin Debate:

Hart: Judges use discretion while deciding borderline case.

Dworkin: - Hart, you are moralist. Judges use principle, not discretion while deciding borderline cases.

Raz's famous claim:-

"The existence & content of every law is fully determined by social sources."

Dworkin:

In reality, law is continuous with social morality.
Law & Morality are inextricably linked through interpretation.

Irony - The Third Theory Debate

Dworkin insisted he wasn't offering a new version of natural law but a "third theory" distinct from both positivism & traditional natural law.

However, most legal philosophers classify him as a modern natural law theorist because of his commitment to morality's essential role in law.

- Revival of Natural Law - Natural law was never dead, there is no question of revival.

Reconstruction of Natural Law

- Aquinas - An unjust law is not law.
- Dworkin - An unjust law is still law, but may not deserve obedience.

Positivism - Law as social fact. Legislation focused.
Dworkin - Law as integrity. Adjudication focused.

- Gustav Radbruch, moved from positivism to natural law.

- Fuller was actually a procedural positivist.
- Hart - Fuller debate ↓
Hart's rejection of Austin view was ultimately a family quarrel within analytical jurisprudence.

- Tug of War

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Quantum JP

- Probabilistic Justice
- Meta JP
- Smart Contracts
 - This needs specific interpretation. ^{rule/principle} for usual/ordinary / general interpretation, breakdown for smart contract
 - Algorithmic bias must be comprehend.
 - Algorithmic interpretation
- Justice ~~just~~ for Consistency (Stare Decesis)
 - Stare Decesis Dilemma.

Strategic Mgmt of Judiciary:

- CMS Reform with e-CMS
 - Infrastructure Development
 - HR Excellence with detailed training frame
 - A2J Enhancement including mobile courts ^{work}
 - Public Trust Building Initiatives.
- Nepal - Specific Innovations:
- Virtual Courts
 - AI-assisted Case Mgmt.
 - Blockchain of records
 - community mediation centers
 - inclusive justice

Q10 Why Restrictions Like Incest?

- Genetic Risks
- family structure protection
- power imbalances
- near-universal taboo. (legal recognition of such taboo)
- consent capacity & protection from exploitation

- Harm Prevention
- Consent Protection
- Equality "
- Social Coordination

As society evolves, marriage law must balance biological realities, cultural diversity, individual autonomy & social welfare.

Q. Can we Rationally bind our future selves?

Representation:

1. Majority- ~~संजात~~ - voice through government
2. Hypomajority - ~~प्रजात~~ - voice through parliament
3. Minority - voice through court (न्यायालय)
4. Hypominority - still voiceless (media Role)

• Coalition Politics - Instability

• ROL = Inefficient

• ROL + ROM = Efficient System.

↳ Rule of Morals.

• ~~अर्थ वास्तव~~
 ↳ Necessity knows no law. But it should know the moral.

- **Blockchain Governance** :-

- Legal Singularity
- Algorithmic Legal Theory
- Artificial Wombs
- Baby Designer (genetic modification)
- Posthuman rights
- Digital Detention (internet shutdown)
- "Economic " (Asset freezing)

612 Continuous Mandamus

- Long term judicial supervision
- Structural reform litigation
- used extensively for env. governance (Godawari Marbles)
- Court-appointed monitoring committees

Mandamus Against Pvt. Entities:

- Digital Platform

Justice Trilemma: Three Competing Goals

1. Quality Justice (competent, careful)
2. Quick Justice (timely, efficient)
3. Cheap Justice. (accessible, affordable)

Quality + Quick = Expensive (specialized court, expert lawyers)
 Quick + Cheap = Low Quality (Mass disposal)
 Quality + Cheap = Slow (Justice denied)

→ prebore

Nepal's Reality

- ... pending cases
- Average disposal time - yrs
- Legal aid → quality issues
- Pvt. lawyers → expensive

Fast Track Court
 Judicial Committee
 Plea Bargain
 → ADL

Historical Legal Debate:

1. Hart - Fuller Debate
2. Hart - Delmyn "
3. Hart - Dworkin "
4. Raz - Dworkin "
5. Rawls - Nozick "

Liberal ↓
 Libertarian → Inequality is voluntary choice
 Metaphor: Gardener vs Matchman → preventing fire/theft

Historical Legal Battle:

1. Riggs v. Palmer

→ Natural growth without inter-fence

1. Socrates v. Athen (399 BCE)

Charge: Corrupting Youth
 Outcome - Death

2. James I. vs. English Courts (1610)

Held - King cannot create new offence by proclamation

Outcome - Parliamentary sovereignty over royal prerogative.

Dread Scott V Standford (1857)

→ US SC → Blacks cannot be citizens

Infamous decision - Accelerated path to Civil War
Overturned by 14th Amendment (1868)

Brown Vs Board of Edⁿ (1954)

→ Overturned: "Separate But Equal" (Plessy
V. Ferguson)

Spark: Civils Right Movement

Nuremberg Trials (1945-46)

→ First Int. War crime Tribunal

→ Estd: Crime Against Humanity, Individual Accoun-
-tability

→ Legal Innovation: "Following Orders" ~~no~~ defense
cannot be a valid ground for
defense.

Roe v. Wade (1973)

→ Privacy right extend to abortion

→ Politicized Judiciary for decades

→ Overturned in Dobbs V. Jackson (2022)

Liberal V. Libertarian

Liberal: "Inequality undermines equality"

On Equality: Libertarian: " reflect voluntary choice

Liberal: Taxation is legitimate social contract.

On Coercion: Libertarian: " " Institutionalized theft.

Liberal: Social beings requiring community support

On Human Nature: Libertarian: Autonomous Individual capable of
self-determination.

Collective Responsibility vs. Individual Sovereignty

Social Justice Vs. Personal Liberty

Active Gov. Vs. Minimal State

• Unsolved legal problems/puzzles:

- Unsolved problems persist not due to lack of effort or intelligence, but because they often involve irreconcilable tensions betⁿ equally valid principles, paradoxes inherent in the nature of law itself & challenges arising from the intersection of law with philosophy, technology & social reality.

- The existence of unsolved puzzle is not failure but an inherent feature of law. They reveal fundamental truths about law.

- These puzzles remind us that:

- Law is an ongoing project, not a finished product
- Perfect justice is aspirational, not achievable
- Humility is essential in legal reasoning (- why?)
- Pluralism is essential in approaches
- Dialogue must continue across differences.

- This shows human are seeking certainty in uncertainty, permanence in change & justice in an imperfect world.

Intellectual Honesty

- Embrace complexity rather than false simplicity
- Avoiding false certainties
- Legal puzzles provides direction even without solⁿ. They are frameworks for thinking.

• What makes law legitimate? Why should anyone obey law?

1. Social Contract - Consent
 - But minorities didn't consent
2. Majority will - Democracy
 - But minority problem → representation gap

3. Justice
 - But there exist circular reasoning.
 - Justice contested.

4. Power
 - But might isn't right.

5. Tradition - Historical continuity
 - But change is necessary. Young generation aspiration.

Can law speak clearly?

Communication Crisis - a fundamental

problem

The Dilemma: Problem of legal language.

- Technically precise $\xrightarrow{\text{but}}$ publicly incomprehensible
- Simple language $\xrightarrow{\text{but}}$ legal uncertainty
- Context dependence $\xrightarrow{\text{but}}$ interpretation inevitable
- Temporal dependence $\rightarrow$ time changes meaning
- Multiple Audience $\rightarrow$ perfect clarity impossible.

Why no compensation on Intestuous Marriage?

1. Primary Harm to family structure & social order rather than individual.
2. Involve complex family dynamics where compensation might be inappropriate.
3. It is treated as crime against moral & social order rather than purely individual.
4. May involve mutual participation, making victim identification complex.

